IT is hereby notified that the Minister of Health and Child Care has, in terms of section 6 of the Dangerous Drugs Act [*Chapter 15:02*] made the following regulations:—

1. These regulations may be cited as the Dangerous Drugs (Production of Cannabis for Medicinal and Scientific Use) (Amendment) Regulations, 2026 (No. 2).

2. The Dangerous Drugs (Production of Cannabis for Medicinal and Scientific Use) Regulations, 2018, published in Statutory Instrument 62 of 2018, is amended in section 2—

(a) by the deletion of the definition of "cannabis plant" and substitution with the following definition—

"cannabis plant" includes the whole or any portion, whether green or dry, of any plant of the genus cannabis also known as "Indian hemp", bhang, camba, dagga, mbanje or intsangu, but excludes—

(a) any fibre extracted from the plant for use as or in the manufacture of cordage, canvas or similar products; or

(b) any seed which has been crushed, comminuted or otherwise processed in such a manner as to prevent germination; or

(c) the fixed oil obtained from the seed; or

(d) the plant cannabis sativa and any part of the plant including the seeds thereof and all derivatives, extracts, cannabinoids, isomer, acids, salts and salts of isomers, whether growing or not with a delta-9 tetrahydrocannabinol concentration of not less than 1 *per centum* on a dry weight basis;

(b) by the insertion of the following definitions—

"Authority" means the Medicines Control Authority of Zimbabwe established by the Medicines and Allied Substances Act [*Chapter 15:03*];

"active pharmaceutical ingredient (API)" means the active ingredient that is the starting material for the manufacturing process of the finished product, such as—

(a) an extracted and purified active component of the cannabis plant (for example a cannabinoid);

(b) an extract of specified parts of the cannabis plant;

(c) a trituration of specified parts of the cannabis plant;

(d) the dried flower of the cannabis plant separated from leaves and stem;

"cannabis sample" means a sample representative of each lot or batch which shall be of a sufficient quantity to enable a determination of whether the lot or batch meets the requirements;

"finished product" means a finished dosage form that has undergone all stages of processing, including packaging in its final container and labelling;

"greenhouse" means an enclosed structure with a roof and sides made of glass or plastic or shed net or any other material as may be approved by the Authority;

"indoor cultivation" means cultivation within a fully enclosed or controlled environment and secure structure, with specified environmental controls;

"residue" means cannabis material that remains after a process of preparation, separation, or purification, such as pruning, trimming, distillation, evaporation, or filtration for manufacturing or research purposes;

"scientific use" means research and development of the various cannabinoids and phyto-constituents found in the cannabis plant through either breed adaptability studies, qualitative control testing, in-vitro and in vivo studies;".

3. The principal regulations are amended by the insertion of new section after section 3—

"*Powers of Authority*

3A. (1) For the purpose of ensuring the effective exercise of his or her functions and powers under these regulations, the Minister shall designate the Medicines Control Authority of Zimbabwe as the Authority responsible for the administration and enforcement of these regulations.

(2) The Authority shall, in the performance of its functions referred to subsection (1) , act in consultation with the Minister.

(3) The Authority shall, in consultation with the Minister, establish a Committee, the function of which shall be to oversee the regulation of cannabis:

Provided that—

(a) the committee shall not, save in so far as the Authority otherwise directs, have power to set aside or vary any decision of the Authority;

(b) any action taken by the Committee shall be reviewed by the Authority at its meeting next after such action is taken.

(4) The Authority shall, establish an inspectorate team, the function of which shall be to conduct compliance and monitoring activities of all sites to ensure compliance with regulations, licensing requirements and Cannabis guidelines."

4. Section 4 of the principal regulations is amended—

(a) by the repeal of the chapeau and the substitution of the following—

"4 (1) An application for the issue of a licence in terms of section 161 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] as read with section 27 of the Act shall be made to the Authority, in duplicate and shall be accompanied by—"

(b) by the repeal of paragraph 1(b) and the substitution of the following—

"(b) a copy of a plan of the site proposed to be licensed which shall comply with the requirement specified in these regulations;"

5. Section 6 of the principal regulations is amended—

(a) by the repeal of the chapeau and the substitution of the following—

"Subject to section 7, the Authority in consultation with the Minister shall, after examining the application under section 4 issue to the applicant a licence that indicates—"

(b) in subparagraph (i) by the deletion of the word "Minister" and the substitution of "Authority".

6. Section 7 of the principal regulations is amended—

(a) by the repeal of the chapeau and the substitution of—

"7. The Authority in consultation with the Minister may refuse to issue, renew or amend a producer's licence in the following circumstances—"

(b) in paragraph (d) by the deletion of "Minister" and the substitution of "Authority".

7. Section 8 of the principal regulations is repealed and substituted with the following—

"*Duration of licence*

8. (1) A producer's licence issued by the Authority in terms of section 6 shall be valid for a period of five years and may be renewed before its expiry.

(2) Where a licensed producer does not commence operation at his or her site for the duration of the licence, and intends to renew the licence, the Authority may refuse to renew the licence."

8. Section 13 of the principal regulations is amended in the chapeau by the deletion of "five" and the substitution of "fourteen".

9. Section 14 of the principal regulations is amended by the insertion of a new subsection after subsection (4) as follows—

"(5) An application for the renewal of a producer's licence which shall be made after the expiry of the licence shall be treated as a new application and all requirements for a new application of a producer's licence shall apply."

10. Section 17 of the principal regulations is repealed and substituted with the following—

"*Temporary suspension of licence*

17. (1) If the Authority is of the opinion that—

(a) the conditions subject to which a licence was issued have not been observed; or

(b) the person to whom a licence has been issued is wrongfully dealing in or supplying or possessing cannabis, or has been convicted of an offence involving dishonesty; or

(c) it would be in the interests of the public generally or a section thereof for a licence to be cancelled or suspended or the purposes for which the licence was issued to be altered or for the conditions subject to which the licence was issued to be varied;

the Authority shall require the temporary suspension of a licence for such period as it may determine.

(2) Where the Authority suspends a licence in terms of subsection (1), it shall forthwith notify the licenced producer of the reasons thereof and call upon the licenced producer to show cause why the licence should not be suspended."

11. Section 23 of the principal regulations is repealed and substituted with the following—

"*Unauthorised access*

23. (1) A licensed producer's site shall be designed in a manner that prevents unauthorised access.

(2) A licensed producer who intends to cultivate outdoor cannabis shall ensure that the perimeter of site is surrounded by a high security barrier designed with the following features which include—

(a) 2.1 metres in height;

(b) high strength;

(c) anti-climb;

(d) anti crawl;

(e) anti-cut design; and

(f) any other requirements as determined by the Authority from time to time."

20. Section 28 of the principal regulations is repealed and substituted by the following—

"*Physical barriers*

28. (1) A holder of a producer's licence shall include physical barriers that prevent unauthorised access within a site where cannabis is present.

(2) A licensed producer who intends to cultivate outdoor cannabis shall ensure that the area where cannabis is present is surrounded by a high security fence designed the following features to prevent unauthorised access—

(a) 2.1 metres in height;

(b) electrified;

(c) high strength;

(d) anti-climb;

(e) anti-cut design."

21. Section 31 of the principal regulations is repealed and substituted by the following—

"*Filtration of air*

31. A licensed producer shall ensure that post harvesting stages of cannabis production are carried out at facilities that are equipped with a system that filters air as approved by the Authority."

22. Section 34 of the principal regulations is repealed and substituted by the following—

"*Cultivation of cannabis*

34. (1) Good agricultural practices shall be applied in the cultivation of cannabis, as determined by the Minister responsible for agriculture.

(2) Any licensed producer shall ensure that cannabis is cultivated in a controlled environment, which shall mean an indoor facility or greenhouse:

Provided that the Authority may exempt any licensed producer from any of the requirements referred to in subsection (2) if such licensed producer has submitted sufficient justification for outdoor cultivation such as—

(a) containment that its site has to be located in not less than 15km radius from the next cannabis or industrial hemp farms; and

(b) security as provided in Part II; and

(c) any other requirements as may be stipulated by the Authority from time to time."

12. Section 35 of the principal regulations is repealed and substituted by the following—

"*Growing media and fertilizers*

35. (1) This section shall apply in all cannabis cultivation processes, except when aeroponics is employed.

(2) Cannabis shall be grown in uncontaminated growing media free of sludge, heavy metals, pesticide residues or other chemicals, and human faeces.

(3) The use of chemicals and their quantities shall be justified and documented.

(4) Regular monitoring of growing media for contaminants shall be conducted and documented.

(5) Fertilizers shall be used in such a way that leaching is reduced to a minimum level."

13. Section 36 of the principal regulations is repealed and substituted by the following—

"*Irrigation*

36. (1) Irrigation methods and practices shall be implemented to optimize plant growth, yield, and quality while minimising water consumption and adverse environmental impact.

(2) Irrigation water shall be regularly tested for contaminants, including but not limited to faeces, heavy metals, herbicides, pesticides, and toxicologically hazardous substances.

(3) Irrigation practices shall be integrated with nutrient management to optimise plant nutrition and prevent nutrient leaching.

14. Section 37 of the principal regulations is repealed and substituted by the following—

"*Pest control products*

37. (1) Fresh or dried cannabis or cannabis plants or seeds shall not be treated with a pest control product unless the product is authorised or registered for use under the Plant Pests and Diseases Act [*Chapter 19:08*] or is otherwise authorised for use under that Act.

(2) Licensed producers shall implement Integrated Pest Management (IPM) strategies to minimize the use of pesticides. The use of these substances shall be avoided to the maximum extent practicable and only permitted when necessary to protect the crop from pests or diseases.

(3) Licensed producers shall maintain detailed records of all pest control products used, including product name, active ingredients, application rates, dates of application, and target pests.

(4) Residue testing of cannabis products for prohibited substances shall be conducted in accordance with regulations established by the authority.

(5) Licensed producers shall take measures to minimise the environmental impact of pest control product use and promote sustainable cultivation practices.

15. Section 38 of the principal regulations is repealed and substituted by the following—

"*Harvesting and post-harvest handling*

38. (1) Cannabis shall be harvested at the optimal stage of maturity to achieve the desired cannabinoid and terpene profile for the intended product. Harvest timing shall be determined based on visual indicators, and/or laboratory testing.

(2) Harvesting shall be conducted using methods that minimise damage to the plant material and prevent contamination.

(3) Post-harvest handling procedures shall include drying, curing, trimming, storage, to preserve product quality and potency.

(4) Licensed producers shall maintain detailed records of harvesting and post-harvest activities, including dates, methods, and environmental conditions.

(5) Harvesting and post-harvest handling practices shall be implemented to prevent contamination from foreign materials, pests, and microorganisms.

16. Section 39 of the principal regulations is repealed and substituted by the following—

"*Drying*

39. (1) Cannabis shall be dried under controlled conditions to achieve a uniform drying rate and prevent mold growth.

(2) Drying equipment may be used to facilitate uniform drying and airflow.

(3) The drying process shall be monitored to ensure consistent conditions and prevent mould growth. Temperature, humidity, and airflow shall be recorded at regular intervals.

(4) Cannabis moisture content shall be monitored to determine the end of the drying process.

(5) When drying cannabis in open air, the cannabis shall be spread in a thin layer on clean, elevated drying racks with sufficient spacing between racks to allow for adequate airflow. The drying area shall be protected from direct sunlight, rain, and contaminants.

(6) Licensed producers shall implement preventative measures to control mould and other microbial growth, including sanitation of drying facilities, regular inspection of drying cannabis, and immediate removal of any mould-infected material.

17. Section 40 of the principal regulations is repealed and substituted by the following—

"*Microbial and Chemical Contaminants*

40. (1) Licensed producers shall implement Good Agricultural Practices (GAP) and Good Manufacturing Practices (GMP) to minimise the risk of microbial and chemical contamination throughout the cultivation, harvesting, processing, and packaging of cannabis.

(2) Cannabis products shall be subjected to regular testing for microbial and chemical contaminants by accredited laboratories. Testing frequency shall be determined based on risk assessment and regulatory requirements.

(3) Licensed producers shall maintain detailed records of all testing results and corrective actions taken to address any contamination issues.

18. Section 42 of the principal regulations and substituted by the following—

"*Maximum yield quantity—cannabis oil*

42. (1) Cannabis oil as a finished product maximum yield quantity of delta-9-tetrahydrocannabinol per millilitre of the oil in the immediate container, taking into account the potential to convert delta-9-tetrahydrocannabinolic acid into delta-9-tetrahydrocannabinol shall be determined by the destination market.

(2) Cannabis provided as an active pharmaceutical ingredient (API) maximum yield quantity of delta-9-tetrahydrocannabinol in the immediate container, taking into account the potential to convert delta-9-tetrahydrocannabinolic acid into delta- tetrahydrocannabinol shall be determined by the destination market.

(3) Where cannabis oil is in a capsule or similar dosage form, each capsule or unit of the dosage form maximum yield quantity of delta-9-tetrahydrocannabinol, taking into account the potential to convert delta-9-tetrahydrocannabinolic acid into delta-9-tetrahydrocannabinol shall be determined by the destination market."

19. The principal regulations are amended by the insertion of a new section after section 44 of the following—

"*Regulatory analytical testing*

44 A. (1) The Authority shall carry out regulatory analytical testing on all cannabis.

(2) The Regulatory analytical tests referred in subsection (1), shall be done on all Cannabis in these circumstances—

(a) prior to export to verify the amount of THC and other quality related issues as determined by the Authority from time to time;

(b) post marketing surveillance activity;

(c) whenever a product defect or quality related complaint has been reported."

20. The principal regulations are amended by the insertion of a new section after section 48 of the following—

"*Standard Operating Procedures (SOPs) for Good Agricultural and Collection Practices (GACPs) and Good Manufacturing Practices (GMPs)*"

48A. (1) A licensed producer shall develop, implement, and maintain detailed Standard Operating Procedures (SOPs) for all stages of cannabis production, including but not limited

to cultivation, harvesting, post-harvest handling, processing, packaging, labeling, storage, and distribution.

(2) SOPs shall be based on sound scientific principles and industry best practices, and shall comply with the requirements of Good Agricultural and Collection Practices (GACPs) and Good Manufacturing Practices (GMPs).

(3) SOPs shall be documented, reviewed, approved, and distributed to all relevant personnel.

(4) Licensed producers shall conduct regular training programs to ensure that all employees are knowledgeable of and comply with the established SOPs.

(5) SOPs shall be subject to periodic review and revision to reflect changes in regulations, technology, or industry best practices.

21. Section 62 of the principal regulations is amended by the repeal of subsection (1)(e).

22. The principal regulations are amended by the insertion of a new sections after section 77 as follows—

"*Requirement to destroy Cannabis upon failure to export*

77A. (1) Where a licensed producer fails to export the Cannabis within twelve months of harvesting, he or she shall notify the Authority within seven days of the lapse of the twelve-month period.

(2) Any person who has reasonable suspicion that a licensed producer has failed to export Cannabis within the twelve-month period post-harvest, he or she shall notify the Authority.

(3) Within 7 days of the receipt of the notification in terms of subsection (1) or (2), the Authority shall conduct an inspection of the respective site.

(4) Where the Authority is satisfied that the cannabis has exceeded a period of twelve months after harvesting and has not been exported, it shall destroy the finished product in terms of section 77.

(5) Where the Authority establishes either during an inspection or otherwise, that a licensed producer has failed to export cannabis within the twelve-month period post-harvest, it shall order for the destruction of the cannabis.

(6) The Authority may, subject to section 77B, suspend or cancel a licence of any licensed producer who fails to comply with subsection (1) or (2).

Cancellation or suspension of licences

77B. (1) Where the Authority intends to suspend or cancel a licence in terms of section 77A (6), it shall inform the licence holder in writing of its intention and the reasons thereof and request the licence holder to submit to it, within 30 days, any written representations he or she may wish to make on the matter.

(2) Where—

(a) no representations are submitted in terms of subsection (1);

(b) after considering any representations submitted in terms of subsection (1);

the Authority is of the opinion that a licence shall be suspended or cancelled; the Authority may notify the licence holder of its refusal.

Requirement to destroy Cannabis upon failure to comply with conditions of licensure

77C.Where the Authority establishes either during an inspection or otherwise, that a licensed producer has failed to comply with conditions of licensure, it shall order for the immediate destruction of the Cannabis.

23. Section 80 of the principal regulations is amended by the deletion of "authority of the Minister" and the substitution of "approval of the Authority".

24. Section 81 of the principal regulations is repealed and substituted by the following—

"*Fees*

81. The fees specified in the First Schedule shall not be payable by any person that has applied for exemption to the Authority and such exemption has been granted in writing by the Minister."

25. Section 83 of the principal regulations is repealed and substituted by the following—

"*Appeals*

83. (1) Any person who is dissatisfied by any decision made by the Authority in terms of these regulations may, within thirty days, appeal to the Minister.

(2) Upon receiving the appeal noted in terms of subsection (1), the Minister may, within thirty days, confirm, vary or set aside the decision appealed against.

(3) Any person who is dissatisfied by the decision of the Minister may, within twenty-one days, appeal to the Administrative Court."

26. The First Schedule is amended by the deletion item 6, 8.9,14.15 and 16, with the substitution of—

"First Schedule (*Sections 2, 4(1)(a), 14(1)(a), 63 and 81*)

Item		*Fee*
6.	Application for import/export licence	USD 75
8.	Annual return fees	USD 1 500
9.	Import/export of samples	USD 75"
14.	Application and issuance of a licence of an additional site	USD 10 000
15.	Inspection fee	bb USD 400 *(plus cost of inspection)*
16.	Application for variation of licence	USD 250

27. The Second Schedule to the principal regulations is repealed and substituted by the following—

SECOND SCHEDULE (*Section 4*)

DANGEROUS DRUGS ACT [*CHAPTER 15:02*]

APPLICATION FOR ISSUE OF A LICENCE FOR PRODUCTION OF CANNABIS

PART A (To be completed by individuals and sole traders)

1. Full name .....
2. Date and place of birth .....
3. Gender .....
4. Address (Home) .....
   .....
5. Email address .....
6. Mobile phone number .....
7. Present place of employment .....
   .....
8. Position of applicant at place of employment (e.g. owner, manager, etc.)..
   .....
   .....

PART B (To be completed by companies)

9. If a company: Name of company .....
   (a) Physical address .....
   (b) Registered Office .....
   (c) Email Address .....
   (d) State shareholders or distribution of shares .....
   .....
   .....
10. PARTICULARS OF DIRECTORS:
   (a) Full names .....
   (b) Address .....
   (c) Citizenship .....
   (d) Date of Birth .....
   (e) Gender .....

PART C (To be completed by all applicants)

11. Name under which business is conducted .....

12. Physical address of premises to be licensed .....
.....

13. Postal address of business.....
.....

14. Telephone/Mobile number of proposed site .....

14A. Email address.....

15. PARTICULARS OF AUTHORISED PERSON

(a) Full name.....

(b) Date and place of birth .....

(c) Gender.....

(d) Contact details.....

16. PARTICULARS OF RESPONSIBLE PERSON

(a) Full name.....

(b) Date and place of birth .....

(c) Gender.....

(d) Contact details.....

17. State the proposed activities .....

18. The substances in respect of which each activity is to be conducted .....
.....

19. State the building/s within the site where the proposed activities are to be conducted (if applicable) .....

20. Have you previously held a licence to produce cannabis? YES/NO* .....
.....

If YES, give details .....

21. Has any application made by you for a licence been refused or cancelled? YES/NO* .....

If YES, give details.....
.....

22. Name and address of nearest police station .....

23. Name and approximate distance of nearest residence from premises to be licensed .....

24. Particulars and date of any trading or other licence held by the applicant or business .....

25. If an individual—

    (a) are you a citizen of, or ordinarily resident in Zimbabwe? YES/NO*;

    (b) if YES supply proof thereof;

    (e) have you within the preceding ten years of this application been convicted inside or outside Zimbabwe of an offence involving the wrongful dealing in or supply or possession of cannabis, or of an offence involving dishonesty? YES/NO* (Attach affidavit).

    (f) If YES state details .....

26. If a company—

    (a) are the directors of the company or a majority thereof citizens or ordinarily resident in Zimbabwe? YES/NO*.....

    (b) if YES supply proof thereof;

    (c) if NO supply proof of exemption by the Minister;

    (d) has the company or any of the directors of the company within the preceding ten years of this application been convicted inside or outside Zimbabwe of an offence involving the wrongful dealing in or supply or possession of cannabis, or of an offence involving dishonesty? YES/NO*(Attach Affidavit).....

    (e) if YES state details .....

    *Delete the inapplicable

NOTE:

Plans of the premises, the appropriate fee, proof of citizenship, residency or an exemption by the Minister, etc, are required to be attached to the application.

Copies of original documents must be properly certified.

If any plan document or fee required to be attached is not attached, the application cannot be accepted.

If insufficient space is provided in the application, attach a sheet of paper with the additional information.

I enclose the proof of payment of the fee of.....
.....

I do hereby declare that the facts herein are fully within my knowledge and to the best of my knowledge are true and correct.

Signature of applicant..... Date .....

.....
Name and position of person in the company

FOURTH SCHEDULE (*Minor Amendments*)

Section	Extent of Amendment
10, 11, 12, 14,16, 18, 19, 20(a), 21, 50, 52(1) and (3), 59(1)(a), 60(1)(a), 63, 77(1) and 78(2) and (4)	By the deletion of "Minister" and the substitution of "Authority"